ANDREW J. GRAMAJO, ESQ.
SBN: 338144
andrew@ajglawgroup.us
320 16th St.
Hermosa Beach, CA 90254
Tel.: (415) 638-9140

Attorney for Plaintiff

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

JOHNNY DENZEL SANTEE, Plaintiff, vs. ACCURATE BACKGROUND, INC., Defendants,	Case No.: **COMPLAINT** for violations of the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.* and the Consumer Credit Reporting Agencies Act, Cal. Civ. Code § 1785 *et seq.* **DEMAND FOR JURY TRIAL**

NOW COMES, Plaintiff JOHNNY DENZEL SANTEE ("Plaintiff") by and through his attorneys, AJG LAW GROUP, PC. and FCRA ATTORNEYS, and files this *Complaint* against Defendant ACCURATE BACKGROUND, INC. ("Accurate Background") or ("Defendant") and respectfully sets forth, complains, and alleges, upon information and belief, the following:

PRELIMINARY STATEMENT

1. Plaintiff brings this action under 15 U.S.C. § 1681 *et seq.* the Fair Credit Reporting Act ("FCRA"), and Cal. Civ. Code § 1785 *et seq.* the Consumer Credit Reporting Agencies Act ("CCRAA") for actual and statutory damages, punitive damages, costs, and reasonable attorneys' fees against Defendant.

JURISDICTION AND VENUE

2. This Court has jurisdiction over Plaintiff's claims pursuant to 28 U.S.C. § 1331, 1334, and 15 U.S.C. § 1681(p), which allows claims under the FCRA to be brought in any appropriate court of competent jurisdiction.

3. Venue is proper in this judicial district pursuant to 28 U.S.C. § 1391b(1), 28 U.S.C. § 1391b(2), and 28 U.S.C. § 1391b(3) being that defendant Accurate Background Inc's maintains its principal place of business in Irvine, California, and the acts and omissions complained of occurred in substantial part within this District.

PARTIES AND SERVICE

Plaintiff JOHNNY DENZEL SANTEE

4. Plaintiff is a resident of Houston, Texas.

5. At all times material hereto, Plaintiff is a "Consumer," as defined under 15 U.S.C. § 1681a(c) and Cal. Civ. Code § 1785.3(b).

Defendant Accurate Background, Inc.

6. Defendant Accurate Background is a "Consumer Reporting Agency" as defined by 15 U.S.C. § 1681a(f) and Cal. Civ. Code § 1785.3(d) and conducts substantial and regular business activities in this judicial district with its corporate headquarters located in this district. Defendant may be served with process upon DAVID C DICKERSON, its registered agent for service of process, at 7515 IRVINE CTR DR, IRVINE, CA 92618.

7. At all times material hereto, Defendant Accurate Background is a Consumer Reporting Agency regularly engaged in interstate commerce by and through the business of assembling, evaluating, and disbursing information concerning consumers for the purposes of furnishing consumer reports to third parties including employers and property managers—as defined under

15 U.S.C. § 1681d.

FACTUAL ALLEGATIONS

8. In September 2025, Plaintiff applied for an employment opportunity with Canadian Pacific Kansas City ("CPKC").

9. As part of the hiring process, CPKC used Defendant Accurate Background, Inc. to obtain background reports on Plaintiff.

10. Accurate furnished two inaccurate background reports to CPKC. Each report falsely indicated that Plaintiff's Texas driver's license had a restriction.

11. Plaintiff's driver's license was, in fact, valid and unrestricted, as confirmed by the Texas Department of Public Safety and shown on Plaintiff's temporary license issued September 17, 2025.

12. After the first inaccurate report, Plaintiff promptly disputed the inaccuracy and provided Accurate with a copy of his valid, unrestricted driver's license.

13. Despite receiving this documentation, Accurate issued a second inaccurate report again falsely indicating a restriction on Plaintiff's license.

14. Plaintiff disputed the second inaccurate report as well.

15. Accurate eventually completed its reinvestigation and corrected the report to show Plaintiff's license was valid and unrestricted.

16. However, because of Accurate's repeated errors and delay in correcting the reports, Plaintiff's prospective employer delayed his training start date.

17. Plaintiff's original start date was October 13, 2025, but his potential employer informed him that because it took so long to clear the license, the next available training class would not begin until 2026.

18. As a direct result, Plaintiff lost wages from the 20-week training period that would have commenced in October 2025.

19. Accurate's conduct caused Plaintiff additional harm, including stress, frustration, and emotional distress over the loss of his job opportunity and income.

FIRST CAUSE OF ACTION

Violation of 15 U.S.C. § 1681e(b) – Negligent Failure to Follow Reasonable Procedures

20. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

21. This is an action for negligent violation of the FCRA; 15 U.S.C. § 1681 *et. seq*.

22. Section 1681e(b) of the FCRA requires consumer reporting agencies to "follow reasonable procedures to assure maximum possible accuracy" of the information concerning a consumer.

23. Accurate Background, Inc. routinely prepares employment background reports for large national employers such as CPKC. Accurate knew that these reports are relied upon to make immediate employment decisions and that any false indication of a driver's license restriction would automatically disqualify a candidate from transportation-related positions.

24. Despite this, Accurate twice generated and transmitted reports stating that Plaintiff's Texas driver's license carried a restriction, even though Texas DPS records and the license itself clearly showed it to be valid and unrestricted.

25. Accurate failed to use reasonable procedures to verify the accuracy of driver's-license information before releasing the reports to CPKC. A simple check of the state's DPS database or review of the uploaded license image would have revealed the truth.

26. Accurate further failed to employ any quality-control or cross-check procedure to prevent the same error from reappearing in a second report after Plaintiff had already disputed the first

one.

27. As a direct and foreseeable result, Plaintiff's conditional employment offer was placed on hold, his October 14, 2025, start date was cancelled, and he lost wages from the delayed training period.

28. Plaintiff also suffered emotional distress, frustration, and embarrassment from being wrongly flagged as having a restricted license.

29. Defendant's conduct was negligent within the meaning of 15 U.S.C. § 1681o, entitling Plaintiff to actual damages, costs, and attorneys' fees.

SECOND CAUSE OF ACTION

Violation of 15 U.S.C. § 1681e(b) – Willful Failure to Follow Reasonable Procedures

30. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

31. This is an action for willful violation of the FCRA 15 U.S.C. § 1681 *et. seq*.

32. Accurate's conduct was not a mere oversight. It willfully ignored clear evidence establishing that Plaintiff's license was unrestricted.

33. After receiving Plaintiff's dispute and an unambiguous copy of the Texas license showing no restrictions, Accurate intentionally or recklessly reused the same flawed data source and re-issued another inaccurate report with the identical error.

34. Accurate's internal policies and automated systems are designed for speed and volume, not accuracy, and it knowingly risks false reporting to employers. Such conduct constitutes a willful disregard of the FCRA's accuracy mandate.

35. Defendant's failures were willful and/or reckless because Accurate knew that it was furnishing inaccurate reports and disregarded clear proof—Plaintiff's valid license—demonstrating that no restriction existed.

36. Accurate's actions were undertaken in conscious disregard of Plaintiff's rights, warranting statutory and punitive damages under 15 U.S.C. § 1681n, in addition to attorneys' fees and costs.

THIRD CAUSE OF ACTION
Violation of 15 U.S.C. § 1681i(a) – Negligent Failure to Conduct Reasonable Reinvestigation

37. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

38. This is an action for negligent violation of the FCRA 15 U.S.C. § 1681 *et. seq*.

39. Section 1681i(a) requires a consumer reporting agency, upon receiving a dispute, to conduct a reasonable reinvestigation to determine whether the disputed information is inaccurate and to correct or delete any item found to be incorrect.

40. After Plaintiff disputed the first inaccurate report, Accurate had actual possession of the correct DPS license image showing no restrictions. Yet it failed to verify or correct its data and instead regenerated the same false information in a second report.

41. Accurate's reinvestigation procedures were wholly unreasonable: it relied exclusively on automated vendor data without human verification, ignored the documentary proof supplied by Plaintiff, and failed to contact the Texas Department of Public Safety to confirm license status.

42. Accurate's failure timely to correct the report caused a weeks-long delay in clearing Plaintiff's background, directly resulting in the lost October 2025 start date and substantial financial harm.

43. Defendant's acts and omissions constitute negligent violations of § 1681i(a), entitling Plaintiff to actual damages, attorneys' fees, and costs under § 1681o.

FOURTH CAUSE OF ACTION
Violation of 15 U.S.C. § 1681i(a) – Willful Failure to Conduct Reasonable Reinvestigation

44. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

45. This is an action for willful violation of the FCRA 15 U.S.C. § 1681 *et. seq*.

46. Accurate's repeated failure to correct the error even after receiving documentary proof was a willful violation of its reinvestigation obligations.

47. Accurate deliberately relied on the same flawed data source that produced the first inaccuracy, knowingly issuing a second false report rather than performing an independent verification with the state licensing authority.

48. Accurate's business model favors quick turn-around reports to satisfy employer contracts at the expense of consumer accuracy. It consciously chose to disregard obvious red flags and supporting documentation that contradicted its automated data.

49. Such conduct demonstrates a reckless disregard of the FCRA and Plaintiff's rights, constituting a willful violation under 15 U.S.C. § 1681n.

50. Defendant willfully failed to follow FCRA procedures by ignoring clear proof of the inaccuracy and by issuing a second inaccurate report after the first dispute.

51. Under 15 U.S.C. § 1681n, Plaintiff seeks statutory damages, punitive damages, and attorneys' fees and costs.

FIFTH CAUSE OF ACTION
Violations of the Consumer Credit Reporting Agencies Act
Negligent violation of Cal. Civ. Code § 1785.14

52. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

53. This is an action for negligent violation of the CCRAA Cal. Civ. Code § 1785 *et. seq*.

54. Defendant Accurate Background violated Cal. Civ. Code § 1785.14. by failing to

establish or follow reasonable procedures to assure maximum possible accuracy in the preparation of the consumer report and credit files maintained concerning Plaintiff.

55. Defendant Accurate negligently failed to comply with the CCRAA. The failures of the Defendant to comply with the CCRAA include but are not necessarily limited to the following:

a. The failure to follow reasonable procedures to assure the maximum possible accuracy of the information reported;

b. The failure to delete information promptly that was found to be misleading or inaccurate, or could not be verified, or that the source of information had advised Defendant to delete;

c. The failure to take adequate steps to verify information Defendant had reason to believe was misleading before including it in the credit report of the consumer.

56. As a result of the conduct, actions, and inaction of Defendant Accurate, Plaintiff suffered damage by loss of wages, additional harm, including stress, frustration, and emotional distress over the loss of his job opportunity and income.

57. The conduct, action, and inaction of Defendant Accurate was negligent, entitling Plaintiff to damages under Cal. Civ. Code § 1785.31(a)(1).

58. Plaintiff is entitled to recover reasonable costs and attorney's fees from Defendant in an amount to be determined by the Court pursuant to Cal. Civ. Code § 1785.31(a)(1).

SIXTH CAUSE OF ACTION
Violations of the Consumer Credit Reporting Agencies Act
Willful violation of Cal. Civ. Code § 1785.14

59. Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

60. This is an action for willful violation of the CCRAA Cal. Civ. Code § 1785 *et. seq*.

61. Defendant violated Cal. Civ. Code § 1785.14 by failing to establish or follow reasonable procedures to assure maximum possible accuracy in the preparation of the consumer report and credit files maintained concerning Plaintiff.

62. Defendant Accurate willfully failed to comply with the CCRAA. The failures of the Defendant to comply with the CCRAA include but are not necessarily limited to the following:

a. The failure to follow reasonable procedures to assure the maximum possible accuracy of the information reported;

b. The failure to delete information promptly that was found to be misleading or inaccurate, or could not be verified, or that the source of information had advised Defendant to delete;

c. The failure to take adequate steps to verify information Defendant had reason to believe was misleading or inaccurate before including it in the credit report of the Plaintiff.

63. The conduct, action, and inaction of Defendant Accurate was willful, entitling Plaintiff to damages under Cal. Civ. Code § 1785.31(a)(2).

64. Plaintiff is entitled to recover reasonable costs and attorney's fees from Defendant Accurate in an amount to be determined by the Court pursuant to Cal. Civ. Code § 1785.31(a)(2).

DEMAND FOR TRIAL BY JURY

65. Plaintiff requests a trial by jury on all issues and counts so triable, pursuant to Rule 38 of the Federal Rules of Civil Procedure.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment against Defendant as follows:

1. Awarding Plaintiff actual damages provided and pursuant to 15 U.S.C. § 1681o(a) and Cal. Civ. Code § 1785.31(a) from Defendant;
2. Awarding Plaintiff statutory damages provided and pursuant to 15 U.S.C. § 1681n(a) and Cal. Civ. Code § 1785.31(a) from Defendant;
3. Awarding Plaintiff punitive damages provided and pursuant to 15 U.S.C. § 1681n(a)(2) and Cal. Civ. Code § 1785.31(a)(2)(B) from Defendant;
4. Awarding Plaintiff attorneys' fees provided and pursuant to 15 U.S.C. § 1681n(a)(3), 15 U.S.C.§ 1681o(a)(2), Cal. Civ. Code § 1785.31(a)(1), and Cal. Civ. Code § 1785.31(a)(2); and
5. Awarding Plaintiff such other and further relief as this Court may deem just and proper.

Dated: October 21, 2025

By: */s/Andrew J. Gramajo*
Andrew J. Gramajo, Esq.
Local Counsel for Plaintiff

By: */s/ Stephen T. Jones*
Stephen T. Jones, Esq.
Lead Counsel for Plaintiff